

		evidentiary showing to support a joint employer theory. The court is not going to entertain assertions regarding the evidentiary support of Plaintiff's allegations in assessing a motion for leave to amend. Defendant can raise its challenges to the sufficiency of Plaintiff's claims in an appropriate proceeding. (See <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 760 ["the better course of action would have been to allow [plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings"].) Plaintiff shall separately file and serve the proposed First Amended Complaint within 5 days of this ruling. Separate filing of the proposed First Amended Complaint is required to ensure it is properly indexed in the Court's electronic filing system. The Case Management Conference currently set for July 10, 2026 is CONTINUED to November 20, 2026 at 8:30 a.m. in Department C44. Plaintiff shall provide notice.
7	Nunez vs. Toyota Motor Sales, U.S.A., Inc. 2025-01505232	<u>Demurrer to Complaint</u> Defendant Toyota Motor Sales, U.S.A., Inc.'s (TMS) demurrer to complaint is OVERRULED. TMS shall answer the complaint within 10 days. The complaint states facts sufficient to constitute the sixth cause of action for fraudulent concealment – inducement, with the requisite specificity. (See <i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 40-41, 43-44 [elements, specificity; duty to disclose, generally]; <i>Gilead Tenofovir Cases</i> (2024) 98 Cal.App.5th 911, 949 ["a vehicle manufacturer owes a duty to purchasers of its vehicles to disclose known defects"]; <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828, 844; see also Compl. ¶¶ 7-9, 52-55, 57-78, 80, Ex. A.) The economic loss rule does not bar a claim for fraudulent concealment. (<i>Rattagan v. Uber Technologies, supra</i>, 17 Cal.5th at p. 38.) <u>Motion to Strike Portions of Complaint</u> Defendant TMS's motion to strike portions of complaint is DENIED.

		The prayer for punitive damages is adequately supported by the fifth cause of action for fraudulent concealment – inducement. (<i>Stevens v. Superior Court (St. Francis Med. Ctr.)</i> (1986) 180 Cal.App.3d 605, 610 [a properly pled fraud claim will itself support recovery of punitive damages].) Defendant shall give notice of all of the above.
8	Professional Registry Network Corporation vs. KPC Healthcare, Inc. 2026-01567102	Application for Right to Attach Order/Writ of Attachment The application by plaintiff Professional Registry Network Corporation for a right to attach order is GRANTED in the amount of \$74,496.80, representing the outstanding principal amount of \$74,466.80 and costs of \$520.00. (Code Civ. Proc., §§ 483.010, 484.090.) Defendant’s evidentiary objections to 4:23-25 and 5:1-2 of the Makridis Decl. in support of the application (i.e. ¶¶ 34 and 36) are SUSTAINED [lacks foundation, lacks personal knowledge]. Defendant’s remaining objections are OVERRULED. Plaintiff has demonstrated the probable validity of its first cause of action for breach of an implied contract in the amount of \$74,466.80, as well as an additional estimated \$520.00 in costs. (<i>Otworth v. Southern Pacific Transportation Co.</i> (1985) 166 Cal.App.3d 452, 458 [breach of contract elements]; <i>Aton Center, Inc. v. United Healthcare Ins. Co.</i> (2023) 93 Cal.App.5th 1214, 1230 [“breach of implied contract has the same elements as does a cause of action for breach of contract, except that the promise is not expressed in words but is implied from the promisor's conduct;” citation omitted; Civ. Code, § 1621 [“An implied contract is one, the existence and terms of which are manifested by conduct.”]; Makridis Decl. in support of application, ¶¶ 5-7, 11-16, 27-31, 35; Ex. A thereto [account statement, invoices].) The court finds that plaintiff has shown a right to attach the property described at ¶ 9(c) of the Application. (Code Civ. Proc., §§ 483.010, subds. (a), (c), and 484.090, subd. (a).) The court orders that a writ of attachment in the amount of \$74,496.80 shall issue against the property described at ¶ 9(c) of the Application, upon plaintiff’s filing of an undertaking in the amount of \$10,000.00. (Code Civ. Proc., §§ 489.210, 489.220.) Moving party’s request for the attachment to include \$30,000.00 in estimated attorney fees, and \$10,000.00 in estimated prejudgment